



Supreme Court Chronicle



Issue VII | May 2024

Highlights

- *Conference on Technology: Dialogue between the Supreme Courts of India and Singapore*
- *A Conversation with Justice Aniruddha Bose*
- *Ensuring Security: Safeguarding the Supreme Court of India*
- *Supreme Court Law Clerks' Moot Court Competition*





Dear Readers,

I am pleased to announce yet another publication of Supreme Court Chronicle—now in its 7th edition. This month's offering is packed with captivating content, ranging from the inaugural 'Moot Court Competition for Supreme Court Law Clerks' to the enriching 'Conference on Technology and Dialogue between the Supreme Courts of India and Singapore.'

Within these pages, readers will discover an insightful interview with Justice Aniruddha Bose, engaging in a candid discussion on different dimensions of law and the emergence of artificial intelligence. The newsletter also provides a comprehensive overview of recent judgments, along with updates on Supreme Court initiatives.

Among other interesting reads, is a snapshot of the operations of the Security wing of the Supreme Court of India—a vital element ensuring the safety of judges, staff, and all stakeholders accessing the premises round-the-clock. Additionally, readers can look into the roundup of key events for the month of April 2024.

As the summer break approaches, I hope that each of you will find time for much-needed relaxation and exploration, while remaining attuned to the ongoing operations of our Registry, which continues to function alongside the vacation Bench.

Happy Reading!

Dr Justice D Y Chandrachud
Chief Justice of India

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Fresh from the Bench

M K Ranjitsinh v Union of India, 2024 INSC 280

Right to be free from adverse effects of climate change

In its judgment dated 21 March 2024, a three-judge bench comprising the Chief Justice of India, **Dr D Y Chandrachud**, **Justice J B Pardiwala** and **Justice Manoj Misra** recognised the right to be free from the adverse effects of climate change as part of the right to equality under Article 14 and the right to life under Article 21. The case related to the deaths of the Great Indian Bustards due to collision with overhead transmission wires installed at solar panel projects. The Court directed the constitution of an expert committee to examine the scope, feasibility, and extent of installing overhead and underground power lines in areas considered ‘priority’ for the conservation of the Great Indian Bustard. The Court noted that solar power is important for India as it not only meets the country’s growing energy demands but also helps

mitigate the adverse effects of climate change by reducing greenhouse gas emissions. The Court held that it is imperative for States like India to uphold their obligations under international law, including their responsibilities to mitigate greenhouse gas emissions, adapt to climate impacts, and protect the fundamental rights of all individuals to live in a healthy and sustainable environment. The Court also held that the right to a healthy environment encapsulates the principle that every individual is entitled to live in an environment that is clean, safe, and conducive to their well-being. The Court recognised that states are compelled to prioritise environmental protection and sustainable development, thereby addressing the root causes of climate change and safeguarding the well-being of present and future generations.

State of Telangana v Mohd Abdul Qasim (Died) Per LRs, 2024 INSC 310

Importance of forests for protection against climate change

In its judgment dated 18 April 2024, a two-judge bench comprising **Justice M M Sundresh** and **Justice S V N Bhatti** underscored the significance of the forest for the survival of diverse forms of life. The Court relied on a report published by the Reserve Bank of India titled “Report on Currency and Finance: Towards a Greener Cleaner India” (2022-23) and stated that there would be enormous potential impact of climate change on the society, leading to serious job losses in every sector. The Court observed that the adverse effect of climate change will be on the future of the nation as a whole, as against an identifiable group. The Court further stated that forests not

only provide for and facilitate the sustenance of life, but they also continue to protect and foster it. The Court also noted that a country with excess forest cover would be in a position to sell its excess carbon credit to another country in deficit. The Court observed that the forests serve the Earth in a myriad of ways ranging from regulating carbon emissions, aiding in soil conservation and regulating the water cycle, which in turn reduces pollution. The Court also noted that environmental pollution significantly affects the underprivileged, violating their right to equality under Article 14 of the Constitution of India, 1950.

Yash Raj Films Pvt Ltd v Afreen Fatima Zaidi, 2024 INSC 328

Promotional trailers of movies are not an offer eliciting acceptance

In its judgment dated 22 April 2024, a two-judge bench comprising **Justice P S Narasimha** and **Justice Aravind Kumar** held that not including content from the promotional trailer in the final movie release does not amount to a 'deficiency of service' on the part of the movie creators under the consumer protection law. The Court noted that a promotional trailer is unilateral. It is only meant to encourage a viewer to purchase the ticket to the movie, which is a transaction and contract independent from the promotional trailer. The Court also noted that a promotional trailer by itself is not an offer and neither intends

to nor can create a contractual relationship. Since the promotional trailer is not an offer, there is no possibility of it becoming a promise. Therefore, the Court held that there is no offer, much less a contract between the appellant and the complainant to the effect that the song contained in the trailer would be played in the movie and if not played, it will amount to deficiency in the service. The Court also held that no case of 'unfair trade practice' under the Consumer Protection Act is made out as the content of the trailer does not make any false statement or intend to mislead the viewers.

Jyoti Dev v Suket Hospital, 2024 INSC 330

Medical Negligence: 'Egg Shell Skull' Rule applicable only in case of pre-existing conditions

In its judgment dated 23 April 2024, a two-judge bench comprising **Justice Sanjay Karol** and **Justice Aravind Kumar** increased the compensation amount to be paid to a patient from Rs. 2 lakhs to Rs. 5 lakhs after recording that she was suffering persistently post-surgery due to deficiency in service by the doctor. After her surgery, the appellant/patient suffered continuous pain near the surgical site and on diagnosis, it was found that a 2.5 cm needle was left near the surgical site by the doctor which required immediate removal. The District Consumer Disputes Redressal Commission granted a compensation of Rs. 5 lakhs to the patient for medical negligence of the doctor which was reduced by the National Consumer Disputes Redressal Commission to Rs. 2 lakhs by application of the *Eggshell Skull Rule*. The Supreme Court noted that compensation by

its very nature has to be just, but in this instance where the patient suffered due to no fault of her own, the awarded amount can at best, be described as 'paltry'. The Court observed that *Eggshell Skull Rule* is a common law doctrine that makes the defendant liable for the plaintiff's unforeseeable and uncommon reactions to the defendant's negligent or intentional tort. The Court further noted that a person having an eggshell skull is one who would be more severely impacted by an act due to a pre-existing condition of the patient, which an otherwise "normal person" would be able to withstand. The Court explained that for the *Eggshell Skull Rule* to be applied, the person must have a pre-existing condition which gets aggravated due to a negligent act. The Court restored the award as passed by the District Commission.

Global Credit Capital Limited v Sach Marketing Pvt Ltd, 2024 INSC 340

Financial Debt & Operational Debt under IBC

In its judgment dated 25 April 2024, a two-judge bench comprising **Justice Abhay S Oka** and **Justice Pankaj Mithal** laid down that the test to determine whether a debt is a 'financial debt' or an 'operational debt' is by ascertaining the real nature of the transaction reflected in the written agreement. Financial debt within the meaning of Section 5(8) of Insolvency & Bankruptcy Code (IBC) is one in which there is an existence of a debt along with interest, if any, which is disbursed

against the consideration for the time value of money. The Court also declared that where one party owes a debt to another and when the creditor is claiming under a written agreement/ arrangement provided for rendering 'service', the debt is an operational debt only if the 'claim' subject matter of the debt has some connection or co-relation with the 'service' subject matter of the transaction.

Association for Democratic Reforms v Election Commission of India, 2024 INSC 341

100% EVM-VVPAT Verification not required

In its judgment dated 26 April 2024, a two-judge bench comprising **Justice Sanjiv Khanna** and **Justice Dipankar Datta** rejected the pleas seeking 100% cross-verification of Electronic Voting Machines (EVMs) data with Voter Verifiable Paper Audit Trail (VVPAT) records. The petitioners prayed that instead of the prevalent procedure where the Election Commission cross-verifies EVM votes with VVPATs in only 5 randomly selected polling stations in each assembly constituency, all VVPATs should be verified. The Court denied the relief to the petitioners on the ground that counting all VVPAT paper slips manually as suggested, would be a labour and time-intensive exercise prone to 'human error' and 'mischief'. The Court further noted that manual intervention in counting could create multiple charges of manipulation of results, and will increase the time for counting, thereby delaying the declaration of results. The Court further held that voters have the fundamental right to ensure that their vote is accurately recorded and counted, but the same cannot be equated with the

right to 100% counting of VVPAT slips or a right to physical access to the VVPAT slips. The Court observed that the suspicions regarding EVM tampering are unfounded and reverting back to the ballot paper system, as prayed, would undo the electoral reforms that have taken place over the years. The Court explained that the EVMs are superior to the ballot paper system as they have effectively eliminated booth capturing, and thus check insertion of bogus votes. EVMs have also eliminated invalid votes which were a major issue with paper ballots. Furthermore, EVMs reduce paper usage and alleviate logistical challenges. Finally, they provide administrative convenience by expediting the counting process and minimising errors. The Court issued two directions - firstly, that the Symbol Loading Unit (SLU) shall be sealed and secured in containers and they shall be opened and examined as in the case of EVMs, and secondly, post-poll checking of 5% EVMs per assembly segment of a constituency may be done, upon a written request by runner-up candidates.

Conference on Technology: Dialogue between the Supreme Courts of India and Singapore



13 April 2024, the Chief Justice of India, Dr D Y Chandrachud delivers an address at the Conference on Technology and Dialogue between the Supreme Courts of India and Singapore, held at Multipurpose Hall, Supreme Court of India

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Judicial dialogues indeed play a vital role in fostering cross-cultural exchange and mutual learning among different legal systems. India and Singapore share not only deep social, cultural, and economic ties but also a commitment to upholding the rule of law and promoting access to justice. As two dynamic and rapidly evolving nations, both India and Singapore recognise the transformative potential of technology in modernising their respective judicial systems.

...The Chief Justice of India

”

The Supreme Court of India organised a two-day conference on Technology and Dialogue between the Supreme Courts of India and Singapore on 13 - 14 April 2024. The landmark conference aimed to explore the intersection

of technology and the legal system, particularly focusing on the transformative role of Artificial Intelligence (AI) in judiciary.

The Chief Justice of India, Dr D Y Chandrachud and Chief Justice of Singapore, Justice Sundaresh

Menon alongside judges, jurists, and experts engaged in extensive panel discussions covering a wide array of topics related to AI and its implications upon the legal system, its potential to assist court proceedings, its role in judicial

training improving access to justice, ethical considerations surrounding its use, and the future of AI. The two-day conference was divided into 6 panels of jurists and experts discussing a multitude of topics on AI and Judiciary.

Panel 1 Artificial Intelligence (AI) and the practice of law: Impact of AI on the legal system



Left to Right: Urs Gasser (Dean, School of Social Sciences and Technology, Munich), Ms Jhalak K Kakkar (Executive Director, Centre for Communication Governance, National Law University, Delhi), Justice Philip Jeyaretnam (Judge, High Court, Singapore), Justice Sundaresh Menon (Chief Justice of Singapore), Dr D Y Chandrachud (Chief Justice of India), Justice Rajiv Shakdher (Judge, High Court of Delhi), Prof (Dr) Rajesh Sreenivasan (Partner, Rajah & Tann Singapore LLP)

Panel 1 delved into the impact of AI and the interactions with a diverse human population in shaping the legal system, stressing the need to balance innovation with policy shaping. The discussions covered the historical development of AI, its usage within and outside the legal system, and the challenges and opportunities it presents. Emphasis was placed on AI as a tool rather than a replacement for legal professionals. The discussions also highlighted the importance

of recognising and addressing inherent biases that might become a part of the basic data sets of AI and the need for contextualising AI in diverse cultural and socio-economic settings, especially for South Asian nations. The potential of AI companions in augmenting legal processes was explored along with the need for critical evaluation, transparency, and ethical considerations in the adoption of AI within the legal framework.

Panel 2 AI Assisting the work of the courts: Possible harnessing of AI in the courts

Discussions in Panel 2 focussed on the responsible implementation of generative AI in legal proceedings, such as the small

claims tribunal to enhance access to justice. Potential usages of AI, such as predicting outcomes and reviewing evidence were also



Left to Right: Dr Anshul Pandey (Co-founder & CTO, Indika AI), Justice Sundaresh Menon (Chief Justice of Singapore), Dr D Y Chandrachud (Chief Justice of India), Justice David Goddard (Judge, Court of Appeal, New Zealand) and Mr Tan Ken Hwee (Chief Transformation and Innovation Officer, Singapore)

highlighted. Contextualisation of AI in the Indian judiciary was discussed, outlining a solution-based approach to address challenges like reducing case backlogs and improving case listings. AI models showcasing potential for e-filing automation, summarisation, and defects analysis in the Indian legal system were discussed. Stress was also laid upon the importance of cautious AI adoption aligned with core values and constitutional

responsibilities, emphasising innovation over automation. JudicialTech and the need for AI-human partnership in judicial processes were also discussed, deliberating on technologies like blockchain and federated computing to enhance judicial efficiency while maintaining human oversight. Overall, the panel provided a comprehensive exploration of the use of AI for completing legal processes, and AI's potential in the legal domain.

Panel 3 AI in judicial training and education: Potential use of AI in training and education of judges



Left to Right: Prof V Kamakoti (Director, IIT, Madras), Mr Justin Yeo (District Judge and Executive Director, Singapore Judicial College), Justice Goh Yihan (Judge High Court, Singapore), Justice Sundaresh Menon (Chief Justice of Singapore), Dr D Y Chandrachud (Chief Justice of India), Justice M Sundar (Judge, High Court, Madras)

The panel discussion on AI in judicial training and education provided a comprehensive overview of the current landscape and future prospects. The imperative of ongoing learning for judges amidst rapid technological advancements was highlighted, along with initiatives to familiarise judges with AI through practical experiences and seminars. The potential of AI to enhance access to justice and streamline judicial processes was underscored, with emphasis on ethical AI practices and diverse datasets. The discussion

reinforced the need to teach about AI's legal implications and preservation of human judgment in legal decision-making. The panel underscored various AI applications in judicial processes, coupled with caveats regarding AI's limitations, and suggested a blended approach with human judges. Overall, the panel discussed the potential benefits of AI in judicial training and education, and the importance of responsible implementation and continued centrality of human judgment in the legal system.

Panel 4

Harnessing AI technology to promote Access to Justice: The Work of Harvey, the Indian Judiciary, and the Singapore Judiciary in Promoting Access to Justice

The panel discussion brought together a diverse range of perspectives on the intersection of AI and the judiciary. Key points discussed included: leveraging AI to streamline legal processes, improve decision-making, and promote equitable

outcomes. The panel emphasised a cautious but proactive approach in integrating AI into the legal framework to maximise its benefits. Future challenges and accountability issues entailing such integration were also delved into.



Left to Right: Justice K V Viswanathan (Judge, Supreme Court of India), Ms N S Nappinai (Senior Advocate, Supreme Court of India), Justice Aedit Abdullah (Judge, High Court of Singapore), Justice Sundaresh Menon (Chief Justice of Singapore), Dr D Y Chandrachud (Chief Justice of India), Mr Winston Weinberg (Chief Executive Officer, Harvey), Mr Rajesh Kripalani (Director, Drew & Napier LLC)

Panel 5 Ethical Issue and risk in the use of AI: Mechanisms to safeguard against risk



Left to Right: Mr Jerrold Soh (Assistant Professor, Singapore Management University), Justice Philip Jeyaretnam (Judge, High Court of Singapore), Justice Sundaresh Menon (Chief Justice of Singapore), Dr D Y Chandrachud (Chief Justice of India), Justice Yashwant Varma (Judge, High Court of Delhi), Mr Dirk Hartung, (Bucerius Law School, Germany)

The panel discussion on ethical issues and risks in the use of AI underscored the importance of addressing critical concerns associated with integration of AI in legal systems. Transparency and accountability were identified as critical

challenges due to the opacity of AI algorithms. Key points during the discussion included the potential for AI to perpetuate systemic injustices and discrimination, as well as embedded biases within algorithms and data.

Panel 6 Future Trend and Possibilities

The panel discussed AI's imminent integration into the legal system, highlighting its role in enhancing decision-making and addressing complexities. The speakers emphasised upon the

empowerment of individuals through socially anchored systems, ensuring accessibility and understanding of laws while augmenting their adaptability and learning capabilities.



Left to Right: Justice Sundaresh Menon (Chief Justice of Singapore), Mr Tan Ken Hwee (Chief Transformation and Innovation Officer, Singapore), Mr Winston Weinberg (Chief Executive Officer, Harvey), Dr D Y Chandrachud (Chief Justice of India), Justice David Goddard (Judge, Court of Appeal, New Zealand), Mr Dirk Hartung (Bucerius Law School, Germany), Prof (Dr) Urs Gasser (Dean, School of Social Sciences and Technology, Munich)

A Conversation with Justice Aniruddha Bose



The Supreme Court Chronicle met with Justice Aniruddha Bose and wished the Justice on the occasion of his birthday. Born on 11 April 1959, Justice Bose is one of the Judges of the Supreme Court who always has an interesting take on social and legal subjects. While graciously agreeing to give an exclusive interview, Justice Bose answered a few questions which the readers would like to know about him.

What actually pursued you to make a career in law, and how do you think law has evolved over the years?

I alternated between the idea of journalism and law as I always had an interest in events which were going around me at that time. I eventually found my calling in law. While in practice, some important judgments came that inspired us, like *S P Gupta*, *Olga Tëllis*, *PUDR*, which gave greater access to the marginalised people to the formal court system. Today, to tackle the issues of similar nature, we have Public Interest Litigations (PILs), which has its origin in these decisions.

Do you think courts are often burdened with the expectation to make laws through its judgments which otherwise is the role of the legislature?

It is pertinent to remember that the courts are established to adjudicate cases and give justice to those whose fundamental as well as legal rights

have been infringed. But one needs to remember that courts cannot take the job of making new laws or stepping into the shoes of the legislature. Though the Supreme Court exercises some form of quasi-legislative jurisdiction, and has oftentimes passed judgments which take the form of law, like the *Vishakha* case guidelines. But these are exceptional situations in which constitutional rights are given new interpretation, creating a new cause of action. Law-making should be left for the legislature to work on, and courts cannot assume that responsibility. Besides the social and political sphere, we have also developed commercial law significantly. Today, we are at par with the rest of the globe vis-à-vis commercial laws. But going back to welfare jurisprudence, *our rights based approach, I would say, is the most advanced in the world. For example, no country in the world, that I know of, has given the right to food the status of a Fundamental Right.*

If you can briefly describe your experience as a Judge in the Supreme Court?

'Being a Judge of the Supreme Court of India, no doubt is the ultimate achievement in the career of a legal professional. It is also in my view, the most challenging adjudicatory post in the world. But now it is more challenging than before because of the number of litigations we handle. It is challenging because of the complexity of legal issues we deal with.'

I must confess when I sat on the chair of this Court on 24 May 2019, the confidence was tinged with an element of nervousness and anxiety. While in the High Court, I knew most of my judgments would be read by a maximum of six persons. The party who lost and his or her lawyer. The winning party never bothers to read the judgment in full. They are only interested in the operative part, and then two or three judges of this court if it is appealed against. Thus I was within a safe comfort zone, assured that my judgment, if wrong, could be corrected by a higher forum. Moreover, social media was not as developed five years back. But what we write in the Supreme Court becomes the law of the land and is read over by thousands of people, including judges of the High Courts, lawyers across the country, law students, and the public in general. Even stray comments made in the course of hearing become viral. *'It sometimes feels like being a fish in an aquarium, where every movement of mine is visible to the outside world.'* With the judgments being available free of cost on e-SCR or other private platforms, legal journalists in particular come with unique comments and analysis. At the end, those who know or do not know anything about law also make their comments about the judgments. I remained in permanent worry over the spellings, grammar, punctuations apart from correctness of law in my judgments.

What is your perception of the role of Bar in the smooth functioning of the Bench?

Being on the other side of the bench is more difficult. Because as a lawyer you require unidimensionality for your clients' case, and you have to push your cart to a given destination. But as a judge, you have to constantly weigh the pros and cons of the issues which affect so many people's lives. When I joined, a particular determination could have been placed before me, of which I did not have much experience. Some senior lawyers assured me that it is the Bar which will update you, and you do not have to worry. So,

I still have that vision of the Bar. Members of the Bar also contribute to the process of decision-making. But there is a thinking now, that the system is becoming very judge-oriented. The Bar, however, still remains the main feeder of the Bench. We expect a greater role of the Bar in jurisprudential contribution.

Every part of our life is influenced by technology, personal or professional. Keeping that in mind, do you think that in the longer run, AI will change the traditional way of the judicial system?

AI will surely help with a change but as things stand now, AI cannot bring the change by itself. Giving an example for the same, suppose the judgment of *Donoghue v Stevenson* was not delivered and today, a person came with a dead snail in a beer bottle and you gave the problem to AI to solve. I do not think the same reasoning would emerge. On the basis of what has happened in the past, AI models are giving a future result. Like what can happen in a given situation. It is data driven; data which is being fed to it by humans. Now consider, if today, a rare situation arises which has never been discussed before in any forum. In such a context, AI will not be able to do justice to the problem, since it will not have any reliable data to predict from or take reference from. I had recently read an article in the Financial Times about hallucinations in AI. AI can hallucinate because they are simply trained to predict a "statistically plausible" continuation of the input, which is why their outputs superficially sound convincing, sometimes even creating fake or fictional cases as we have seen in the recent past. AI is a sophisticated tool which in the legal sphere can be used to get factual briefs of a judgment, or to get a starting point in any research or to even get consolidated judgments across countries as reference. AI would save research time and also give fresh perspective on a legal issue to the judges and lawyers alike. In certain types of cases, it may provide possible solutions, as in motor accident claims cases, in quantification of compensatory damages.

As you are aware that Supreme Court judgments often fall victim to the unfair scrutiny on social media which at times can also lead to misinformation or media trials, how can it be controlled?

I personally expect a more responsible reporting on the Court events. Until the Keshavananda Bharati case, court reporting used to be a page 4 or 5 news item. Now, almost every day on the front page, in most of the newspapers there are reports on judgments. I believe there ought to be more cautious reporting, sticking to facts by the media. Earlier, only those accredited by the Court used to do law reporting. But that was the time when the Court used to be seen as an isolated institution and also it did not participate much in public policy matters. Therefore, to stop the media from reporting or pass strict orders in this regard would be a blockade to the fourth pillar of the democracy, which would further be against the freedom of speech and expression. Moreover, informed criticism of a judgment should always be welcomed.

Sir, if there is one piece of advice that you would like to give to the young law professionals, what would it be?

The students who want to pursue law, I would like to say that *'law is a consuming profession, you have to think in law, dream in law.'* But at the same time you must know how society works and evolves. Because law detached from society would become body without soul. You have to be aware of developments in the fields of sociology, history, science and also take aid of artificial intelligence. And for the young professionals who have just started a litigation practice, I would suggest that thorough research should be there in respect of every case. They should be well versed with the jurisprudence and its application.

We have heard that you will be joining the National Judicial Academy post retirement, is there any specific vision you have for the Academy?

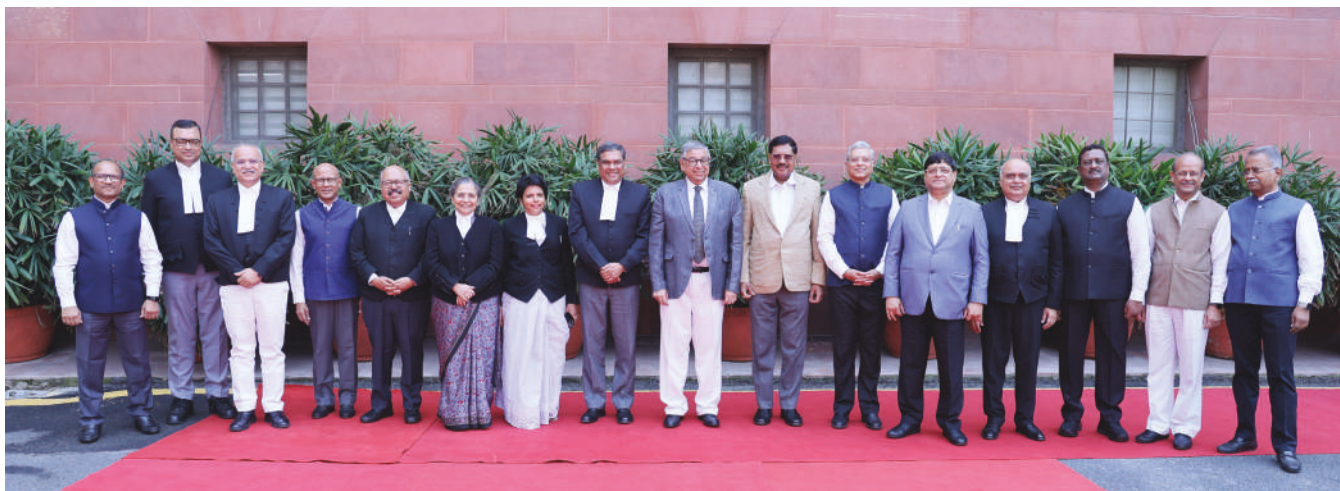
Yes, you have heard it right. For the National Judicial Academy, I believe it has been doing a good as well as an important job. After one becomes a judge, the person is supposed to know everything. But usually what happens is that whatever a judge learns mostly comes through the lawyers. I have very high regard for Bar. Remembering and agreeing to the belief that it is the Bar that actually keeps the bench updated, time has come to have our independent platform for sharing our knowledge.



As you know, law is very dynamic in nature and keeps changing along with the social fabric. To keep up with these changes, a Judge needs to keep himself/herself updated and be a step ahead. Further, I think we do not have any system by which we can discuss the legal problems on a broader level among us, with aid of domain experts. NJA fills that gap. Otherwise, it is a very individualistic approach in dispute resolution. I believe the National Judicial Academy provides and should continue to provide a platform that does not focus on the problems involved in a particular litigation. Rather it discusses the problems related to changing laws and society with challenging issues like cyber-crimes, e-commerce disputes, complex service matters owing to virtual jobs, etc. With the gig economy, new challenges are emerging in employment law. New thinking is emerging in gender jurisprudence. To equip our Judges to have a fair idea of these changes and the right way to deal with them while imparting a true research-based approach would be the objective that the NJA can fulfil.

Supreme Court Events and Initiatives

Ceremonial Guard of Honour



Left to Right: Justice Sandeep Mehta, Justice Dipankar Datta, Justice Satish Chandra Sharma, Justice Sanjay Kumar, Justice Hrishikesh Roy, Justice Bela M Trivedi, Justice Hima Kohli, Justice Sanjiv Khanna, Justice Aniruddha Bose, Justice B R Gavai, Justice P S Narasimha, Justice Sudhanshu Dhulia, Justice Ahsanuddin Amanullah, Justice P B Varale, Justice Rajesh Bindal, Justice S V N Bhatti, during the ceremonial Guards of Honour marking the retirement of Justice Aniruddha Bose

In January 2023, the Chief Justice of India approved the proposal to award the Ceremonial Guard of Honour by the CRPF, stationed on the premises, on the eve of a Judge's retirement. Justice Abdul Nazeer was the inaugural recipient of this honour on 4 January 2023. The ceremony is attended by

the honoured Judge and other Supreme Court Justices. It concludes with the retiring Judge distributing sweets to the guards and the Guard Commander. Most recently, on 10 April 2024, Justice Aniruddha Bose received the Ceremonial Guard of Honour.



10 April 2024, the Chief Justice of India, Dr D Y Chandrachud and Justice Aniruddha Bose during the ceremonial bench proceedings in Courtroom no 1

Supreme Court Announces Automated WhatsApp Messaging Services for Stakeholders

The Supreme Court of India announced the integration of WhatsApp messaging services with its Information Technology services on 25 April 2024. Launched in the Diamond Jubilee year of the Court, the initiative is aimed at strengthening the right to access to justice and enhancing transparency in the judicial system at the Supreme Court.



Left to Right: Justice Ahsanuddin Amanullah, Justice Dipankar Datta, Justice Satish Chandra Sharma, Justice Sundaresh Menon (Chief Justice of Singapore), Justice Surya Kant, Ms Kalpana Das, the Chief Justice of India, Dr D Y Chandrachud, Justice B R Gavai, Justice Sandeep Mehta, Justice Abhay S Oka, Justice P S Narasimha, and other Judges of the Supreme Court of India during the Ambedkar Jayanti on 14 April 2024

Through this service, Advocates-on-Record and Party-in-Person will receive automated messages regarding electronic filing, cause list, orders and judgments. All members of the Bar and the Registry officials will be able to receive the cause list as and when published by the Registry. Automated messages through

WhatsApp will be received on successful filing of cases, notification about objections being marked by the Registry in the cases filed, and subsequent registration of cases. Further, in addition to accessing orders, judgments, through the website, stakeholders will now receive the same on their mobile devices.



25 April 2024, Students of OP Jindal Global University with Dr Uma Narayan, Registrar (Library), and Dr Sukhda Pritam, Additional Registrar-cum-Director (Centre for Research and Planning), during the visit to Supreme Court Judges' Library

Supreme Court Law Clerks' Moot Court Competition

The Supreme Court of India organised the first ever 'Supreme Court Law Clerks' Moot Court Competition 2024' from 27-28 April 2024. The initiative was aimed at enhancing the advocacy

skills of Law Clerks and Law Researchers who are working in the chambers of the Supreme Court Judges and the Registry of the Supreme Court.



28 April 2024, the semi-final rounds taking place in the Supreme Court premises



28 April 2024, Justice P S Narasimha and Ms Rebecca John (Senior Advocate), felicitate the winners of the first Supreme Court Law Clerks' Moot Court Competition 2024



28 April 2024, Justice P S Narasimha and Ms Rebecca John (Senior Advocate) felicitate the runners-up of the first Supreme Court Law Clerks' Moot Court Competition



Group photo of Justice P S Narasimha and Ms Rebecca John (Senior Advocate) with the finalists and the organising team of Centre for Research and Planning, Supreme Court of India

Legal Aid



*8 April 2024,
Justice Sanjiv Khanna,
Executive Chairman, NALSA release a
framework and schedule for quarterly
meetings of the Under Trial Review
Committees*

*27 April 2024,
Justice Sanjiv Khanna
delivers an inaugural address during
the Special Training on Mediation
Act, 2023, at the Auditorium of the
Madras High Court*



27 April 2024, Justice Sanjiv Khanna delivers an address during the Conference of DLSAs of Tamil Nadu and Puducherry at ADR Building, Madras High Court



*28 April 2024,
Justice Sanjiv Khanna at the
Madurai Central Prison, interacts
with the prison inmates, jail
officials, doctors and counsellors
posted at the Prison Hospital,
Tamil Nadu*

*28 April 2024,
Justice Sanjiv Khanna
at the inauguration of the Convict
Paralegal Volunteer Training
Programme, "PATAM Project"
conceptualised by the PRISM NGO
in collaboration with DLSA Madurai
and prison authorities at the Madurai
Central Prison, Tamil Nadu*



*28 April 2024,
Justice Sanjiv Khanna,
Executive Chairman, NALSA,
interacts with the villagers
during the Legal Aid Camp organised
at Vellaripatti village, Madurai,
Tamil Nadu*

Training HUB



8 April 2024, Ms R Arulmozhiselvi, Additional Registrar (Training), Supreme Court of India, conducts an Advance Judicial Training on Civil Matters for the newly inducted Dealing Assistants of the Registry



23-25 April 2024, Secretary General, Atul M Kurhekar delivers an inaugural address at the e-HRMS 2.0 Training for 951 officials of Registry including 714 physical and 237 online participants at the Multipurpose Hall, Supreme Court of India



20 and 27 April 2024, Dr Rachna Wadhwa conducts a Compression Only Life Support (COLS) for the fourth and fifth batch of Registry officers and officials at the G B Pant Institute of Postgraduate Medical Education and Research, New Delhi

Sports and Cultural Events 2024



4 April 2024, Justice Sanjiv Khanna attends the mini-marathon held at Jawaharlal Nehru Stadium, New Delhi



10 April 2024, Justice K V Viswanathan attends the quiz competition held at the multipurpose hall, B block, Additional Building Complex, Supreme Court of India



15 April 2024, Justice J B Pardiwala, Ms Jasmine J Pardiwala, along with Dr Uma Narayan, Registrar (Library), Mr Shashidhara Shetty, Registrar (Court), Dr Sukhda Pritam, Additional Registrar-cum-Director (Centre for Research and Planning) and other officials of the Registry at the cooking competition

Ensuring Security: Safeguarding the Supreme Court of India



*Mr Mahesh Tanajirao Patankar,
Registrar, Supreme Court of India*

In the Supreme Court of India, there is a crucial unit responsible for the safety of all the stakeholders. Focused on security, this unit is vital for the smooth operation and overall functioning of the Courts. To know more about the recent developments in the security measures, the *Supreme Court Chronicle* met with Mr Mahesh Tanajirao Patankar, a judicial officer from Maharashtra, who is the Registrar of Security. Among various duties, Mr Patankar also has under his wings the role of ensuring the safety and security of the Judges, the Court, staff and everyone accessing the premises. During the conversation, Mr Patankar explained how his job entails setting up strict security rules, deployment of security staff, organising training and much more.

While explaining the structure, Mr Patankar states that apart from the in-house security team of the Supreme Court, there is also a separate unit of the Delhi Police, headed and supervised by the Deputy Commissioner of Police (DCP), Delhi within the Court precincts. The security

team at present uses the latest technological tools to serve the goal of protecting the Court without letting it affect its day-to-day functioning.

“We mainly protect the Supreme Court Building starting from the high-security zone to the low-security zone. There is no actual low-security zone, but it is just a term used for a space where free access to the public is allowed to a certain extent. We regulate the number of people entering these security zones. We also secure and look after the Additional Building Complex of the Supreme Court which is right across the road and adjoined by an internal tunnel with the Main Building,” added Mr Patankar.

The Supreme Court has its own parking area allowing entry of only authorised vehicles. To get in, advocates need a special pass issued by the Supreme Court Bar Association (SCBA), then signed by the Additional Registrar, Security. For the high-security zone, passes are issued by the Admin General branch with strict requirements.

Different passes are issued by the Security department, varying for individuals including contractual and permanent staff of the Court. These passes can last from three months to five years. Since July 2010, the Supreme Court has maintained a dedicated security team tasked with overseeing all the aspects of security within the Court’s premises including the issuance of proximity cards, radio frequency tags, maintenance, etc. The security team often conducts surprise checks during off hours for ensuring vigilance and preparedness.

The Security Committee, presently consisting of Justice Sanjiv Khanna, Justice Abhay S Oka and Justice Vikram Nath oversees the security matters. The committee regularly takes steps to

improve the scope and impact of security within the premises.

Mr Patankar states that until 2024, there was no dedicated security branch at the Supreme Court. Instead, a small in-house security team, working round the clock alongside the Delhi Police ensured safety. The Security Committee aiming to boost vigilance and preparedness, decided to establish a dedicated security branch. Following the Committee's report, on 26 April 2024, under the guidance of the Chief Justice of India, Dr D Y Chandrachud, an independent Administrative Security Branch was established to oversee security matters at the Supreme Court of India.

"The staff strength of the Admn (Security) Branch shall consist of one Assistant Registrar (specialised officer), two Branch officers (one specialised and one departmental), three senior court assistants, five court assistants, three junior court assistants, one senior court assistant and two junior court assistants apart from the Registrar (Court and Building) and Additional Registrar (Security) who will supervise the work of the Admn (Security) Branch," shares Mr Patankar.

Mr Patankar, elaborating on the intricacies of overseeing events and functions at the Supreme Court, highlights the nuanced approach required for different scales of gatherings. While routine security protocols suffice for regular activities, larger events demand heightened vigilance to cater to the diverse array of guests, including



Security personnel deployed outside courtroom corridors ensuring security within the premises

esteemed dignitaries and ambassadors hailing from various jurisdictions of the world.

Underlining the Supreme Court's efforts to safeguard its premises and all stakeholders accessing it, Mr Patankar emphasises the ongoing endeavour to procure advanced security equipment. However, he aptly notes that the true challenge lies not just in acquisition but in the effective installation and operationalisation of these instruments. Meeting this challenge head-on, the institution has established a dedicated team of experts to oversee the process in collaboration with the Asset Management Group (AMG). Moreover, on-site technical support staff and engineers are poised to ensure seamless implementation and functioning of the security measures.

When questioned about the demanding nature of his role, Mr Patankar elucidates how it necessitates meticulous coordination and adept delegation to ensure that each department operates cohesively, upholding the institution's standards. Driven by a passion to contribute positively to society, he draws inspiration from the work ethics of the Chief Justice of India, Dr D Y Chandrachud, endeavouring to lead by example in his judicial duties.

Supreme Court Chronicle also met with Colonel K B Marwaha (Retd), Additional Registrar (Security), who has been working in the Supreme Court for the last 14 years. At the inception and construction of the Additional Building Complex, Mr Marwaha provided valuable insights into the robust safety measures implemented to protect all the stakeholders within the court premises. The security apparatus functions round the clock to ensure a smooth functioning of the Court during the day as well as for special hearings during midnight. The security measures in general entails meticulous planning, regular security assessments, and the implementation of comprehensive strategies to mitigate potential threats.

Insights from the in-person interaction included as follows:



Col (Retd) K B Marwaha, Additional Registrar (Security), Supreme Court of India

What is the role of the Additional Registrar (Security) in security operations and how does the security team function?

Additional Registrar (Security) is responsible for supervision of all aspects related to security of the Court precincts. He ensures that the security personnel follow all the protocols at the entry gates and court rooms without causing any inconvenience to the functioning of the Court or the movement of the stakeholders/visitors. The Additional Registrar is also responsible for supervising and managing the deployment of the security personnel deployed (under DCP) from time to time. This involves ensuring proper training, and discipline of security personnel to maintain a high level of professionalism and efficiency in their duties. As an Additional Registrar, it is the duty of the officer to arrange meetings of the visitors with the Judges of the Supreme Court as well as verification of the car parking stickers/ permissions issued to various stakeholders on a regular basis.

What measures are in place to ensure the safety and security of the Supreme Court of India and its stakeholders?

The safety of the Supreme Court and everyone associated with it is of utmost importance. To achieve this, we have comprehensive security plans and strategies in place. Regular security

assessments help us identify any likely mishap, lapses or any security vulnerability, so that effective countermeasures can be implemented. In the Court premises, we only permit vehicles with approved parking stickers issued by the concerned authority. Owing to the crucial and sensitive nature of our security operations, it is incumbent upon us to have continuous surveillance and monitoring of the premises with CCTV cameras. All aspects related to maintenance of security equipment, access control equipment, anti-sabotage equipment and CCTV cameras are supervised by me. All these measures help in maintaining constant vigil, ensuring quick response to any security breach. In this regard we maintain a close collaboration with the Delhi Police which is also stationed within the premises to address any security concerns.

Could you elaborate on the latest technological advancements deployed to enhance security over the years?

Pursuant to directions of the Chief Justice of India, we have recently introduced state-of-the-art security equipment including under-vehicle scanners, Radio Frequency IDentification (RFID) tag system for vehicles, boom barriers and bollards at the gates. Automatic crash resistant sliding gates are also being introduced at the gates. The Su-Swagatam system is also being integrated with the access control system to ensure faster entry of stakeholders. In fact, we have also implemented a process for online intimation regarding various conferences, meetings so that entry of vehicles and stakeholders is facilitated.



Security personnel deployed outside judges gallery at the Supreme Court of India

SCBA Scoop



5 April 2024, Justice Ahsanuddin Amanullah and Justice Dipankar Datta at the inauguration ceremony of the Annual Lawn Tennis Tournament at DLTA Stadium organised by the Executive Committee, Supreme Court Bar Association (SCBA)



7 April 2024, Justice B R Gavai, Justice M M Sundresh, and Justice Ahsanuddin Amanullah distribute prizes to the winners and runners-up of the Annual Lawn Tennis Tournament 2024, organised by SCBA



9 April 2024, the Chief Justice of India, Dr D Y Chandrachud along with Attorney General of India and SCBA members bestow a ceremonious memento upon Justice Aniruddha Bose during a heartfelt farewell



Left to Right: Justice Ahsanuddin Amanullah, Justice Hima Kohli, Justice P B Varale, Justice B R Gavai, Justice Surya Kant, Justice Vikram Nath, Justice P S Narasimha, Justice K V Viswanathan at Eid Milan celebrations, organised by the Executive Committee, SCBA on 18 April 2024



18 April 2024, Justice Ahsanuddin Amanullah, Chief Guest, addresses the newly designated Senior Advocates of Supreme Court of India at ISIL, Krishna Menon Bhawan organised by the SCBA



23 April 2024, the SCBA places wheelchairs at all entry gates of the Supreme Court



24 April 2024, Justice Abhay S Oka, Justice Dipankar Datta, Justice Pankaj Mithal, and Justice Sanjay Karol attend the farewell function of Justice Aniruddha Bose, organised by Supreme Court Young Lawyers' Forum at the Auditorium, ISIL, New Delhi

Beyond the Court



1 April 2024, the Chief Justice of India, Dr D Y Chandrachud at the 20th D P Kohli Memorial Lecture on the occasion of CBI Day at Auditorium Hall-1, Bharat Mandapam, ITPO, New Delhi. The conference was also attended by Justice Ahsanuddin Amanullah



5 April 2024, the Chief Justice of India, Dr D Y Chandrachud, Justice B R Gavai, Justice Abhay S Oka, and Justice P B Varale attend the inaugural centenary year celebration program of the High Court Bar Association, Nagpur



6 April 2024, Justice B R Gavai, Justice Abhay S Oka, and Justice P B Varale attend the felicitation program of the designated Senior Advocates and Advocates (HCBA Members) with 50 years of practice held at Vasant Rao Deshpande Hall, Civil Lines, Nagpur



5-6 April 2024, Justice P.S. Narasimha delivers a special address at the inaugural session of Samadhan in the presence of Justice Sanjiv Khanna and Justice Sanjay Karol at Delhi High Court Mediation and Conciliation Centre, advance training on “The Concept and Process of Mediation” at Agra, UP



6 April 2024, Justice Surya Kant, Justice Augustine George Masih and Justice Sandeep Mehta at the valedictory session of One Year Induction & Training Programme of Judicial Officers at Rajasthan State Judicial Academy, Jodhpur



6 April 2024, Justice C.T. Ravikumar attends the final round and the valedictory ceremony as the Chief Guest at the National Moot Court Competition, 2024, School of Law, Delhi Metropolitan Education, Noida

Regional Conference for Northern Zone on Family Court Matters



6 April 2024, the Northern Zone Regional Conference of the Family Courts Committee at Dehradun



*6 April 2024,
Justice Hima Kohli,
Chairperson of the Family Courts
Committee, Supreme Court of India
at the Northern Zone Regional
Conference, Dehradun*

*7 April 2024,
Justice B V Nagarathna,
Member of the Family Courts Committee,
Supreme Court of India delivers a
special address in the valedictory
session at the Northern Zone
Regional Conference, Dehradun*





6 April 2024, Justice M M Sundresh delivers an address at the Founder's Day and Arutchelvar Dr. N Mahalingam Award function held at Coimbatore



6 April 2024, Justice M M Sundresh attends the fifth Annual Convocation of the Tamil Nadu National Law University, Tiruchirapalli



6 April 2024, Justice Ahsanuddin Amanullah, Chief Guest, delivers an address during the Rule of Law Convention, 2024 organised by the Bar Association of India at India Habitat Centre, New Delhi



6 April 2024, Justice Ahsanuddin Amanullah, Chief Guest, delivers an address at the valedictory function of Justice U P Singh Memorial 3rd Edition—CNLU-CCI National Moot Court Competition, 2024 organised by the Chanakya National Law University, Patna



6 April 2024, Justice Rajesh Bindal inaugurates the 2nd National Conference on the theme "Legal Education, Profession and Integrating Pro Bono Culture for Better Access to Justice" at Rajiv Gandhi School of Intellectual Property Law, IIT Kharagpur, West Bengal



6 April 2024, Justice Prashant Kumar Mishra attends the Golden Jubilee International Conference organised by University Law College, Utkal University, Bhubaneswar



*7 April 2024,
Justice Rajesh Bindal,
Chief Guest, attends the
vaedictory ceremony at National
Law Fest (Vidhi Utsav) organised
by School of Law, University of
Petroleum and Energy Studies (UPES),
Dehradun*

*11 April 2024,
Justice Rajesh Bindal
delivers an address at
the Induction Ceremony of
the Training Programme
for Punjab Judicial
Officers, organised by
the Chandigarh Judicial
Academy*



Justice V R Krishna Iyer Memorial Lecture



*13 April 2024,
Justice Surya Kant
shares the contributions of
Justice V R Krishna Iyer at the
Justice V R Krishna Iyer
Memorial Lecture, New Delhi*

*13 April 2024,
Justice Surya Kant and Justice
Ahsanuddin Amanullah attend
the Justice VR Krishna Iyer
Memorial Lecture on the theme
“In search of Being Right:
Citizens, Governance & Courts”
by R Venkataramani, Attorney
General of India*



*13 April 2024,
Justice C T Ravikumar
delivers an address at the
Justice VR Krishna Iyer
Memorial Lecture, New Delhi*

*13 April 2024,
Justice K V Viswanathan
delivers an address at the
Justice VR Krishna Iyer
Memorial Lecture,
New Delhi*





15 April 2024, Justice B R Gavai and Justice Abhay S Oka co-chair the Ambedkar Memorial Lecture series on “Article 32 : History and the Future” at ISIL organised by the Society for Constitution and Social Democracy and The Leaflet



17 April 2024, Justice Rajesh Bindal, Chief Guest, inaugurates the final round of the Moot Court Competition at ILM University, Greater Noida



20 April 2024, Justice Rajesh Bindal, Chief Guest, attends the State Level Conference on Case Management: Inculcating Public Trust and Confidence organised by the Judicial Academy, Ranchi, Jharkhand

Conference on “India’s Progressive Path in the Administration of Criminal Justice System” organised by the Ministry of Law and Justice



20 April 2024, the Chief Justice of India, Dr D Y Chandrachud delivers an address at a conference on “India’s Progressive Path in the Administration of Criminal Justice System” organised by the Ministry of Law and Justice.

20 April 2024, Justice P S Narasimha delivers an address during the Conference on Criminal Law Reforms, 2023 “India’s Progressive Path in the Administration of Criminal Justice System” at Dr Ambedkar International Centre, New Delhi



20 April 2024, Justice Sanjay Karol delivers an address during the Conference on Criminal Law Reforms, 2023 “India’s Progressive Path in the Administration of Criminal Justice System” at Dr Ambedkar International Centre, New Delhi



21 April 2024, Justice B R Gavai, Justice Vikram Nath, Justice Pankaj Mithal, and Justice P B Varale attended the book launch of the biography of Justice Dilip B Bhosale 'The Benevolent Judge' held at the Taj Hotel, Mumbai



21 April 2024, Justice B V Nagarathna delivers a lecture on the theme "Celebrating 75th Years of Indian Supreme Court" at the National Conference organised by the National Law University, Jodhpur



23-26 April 2024, the Chief Justice of India, Dr D Y Chandrachud (virtually), Justice K V Viswanathan and Justice Sundaresh Menon (Chief Justice of Singapore) at the 4th Judicial Roundtable on Commercial Law organised by the Supreme Court of Singapore, held at Durham Law School, London



26 April 2024, Justice Surya Kant, Chief Guest, attend the Indian Law Institute website launch, on the occasion of IPR Day



26 April 2024, Justice M M Sundresh attends the Literary Lecture on "Gracious Grant of Arvaiyar" organised by Tamil Advocates Literary Society held at Indian Law Institute, New Delhi

27 April 2024, Justice B R Gavai and Justice S V N Bhatti attend the inauguration of 15 Courts Building Complex, organised by the Principal District Judge and President and Members of Bar Association, Chittoor



27 April 2024, Justice Surya Kant, Chief Guest, at the Guru-Gyan-National Tax Conference organised by All India Federation of Tax Practitioners and Haryana Tax Bar Association at Radisson Hotel, Gurugram

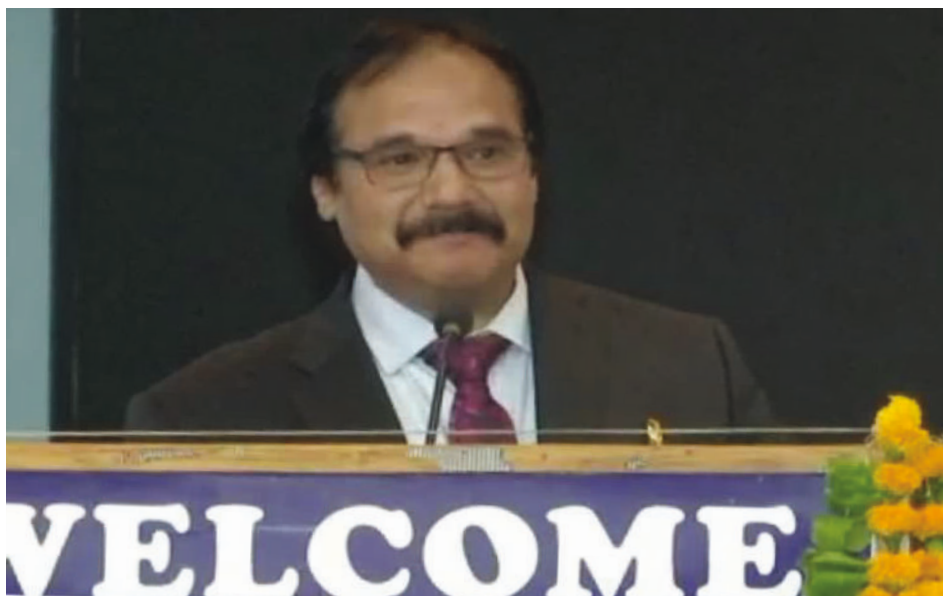


27 April 2024, Justice M M Sundresh, Chief Guest, attends the special program on Kamba Ramayanam Kamban Karvi Amudhum, Isai Amudhum organised by Shanmukhananda Sangeet Sabha and Delhi Tamil Sangam, New Delhi



27 April 2024, Justice Pankaj Mithal, delivers an address at the 'Familiar Faces Fiesta' (Alumni Meet) organised by the University of Allahabad Alumni Association, Prayagraj

*27 April 2024,
Justice Rajesh Bindal,
Chief Guest, at the 5th
convocation of Maharaja
Agrasen University, Baddi,
Himachal Pradesh*



*27 April 2024,
Justice Prashant Kumar
Mishra, at the 75th
year anniversary of the
establishment of Rajasthan
High Court at Jaipur
organised by Rajasthan High
Court Bar Association*

*30 April 2024,
the Chief Justice of India,
Dr D Y Chandrachud
delivers an address at
the Central Asia Online
Conference on 'Information
and Technology in
Courts' organised by the
Republic of Kazakhstan*



Glimpses of Conference on Technology: Dialogue between the Supreme Courts of India and Singapore











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